IN THE COMMONWEALTH COURT OF PENNSYLVANIA

No. 1191 C.D. 2020

IN RE: CANVASS OF ABSENTEE AND MAIL-IN BALLOTS OF NOVEMBER 3, 2020 GENERAL ELECTION

Appeal of:
Donald J. Trump for President, Inc.
Appellant.

APPELLANT'S BRIEF

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STATEMENT OF JURISDICTION

This Court has jurisdiction to review the lower court's November 13, 2020 orders of the Court of Common Pleas of Bucks County pursuant to Judicial Code Section 762(a)(4)(i)(C) which grants the Commonwealth Court of Pennsylvania exclusive jurisdiction over appeals from final orders of the Court of Common Pleas in matters involving statutes relating to elections or other election procedures. 42 Pa. C.S. § 762(a)(4)(i)(C); *Dayhoff v. Weaver*, 808 A.2d 1002, 1006 (Pa. Cmwlth. Ct. 2002), *aff'd* 819 A.2d 548 (Pa. 2003).

ORDERS OR OTHER DETERMINATION IN QUESTION

The text of the order or other determination from which this appeal has been taken or which is otherwise sought to be reviewed is set forth verbatim as follows:

> IN RE: CANVASS OF ABSENTEE AND MAIL-IN BALLOTS OF NOVEMBER 3, 2020 GENERAL ELECTION
> COURT OF COMMON PLEAS, BUCKS COUNTY, NOVEMBER TERM, 2020, No. 20-05786-35
> ORDER
> AND NOW, this 19th day of November, 2020, upon consideration of (1) the Petition for Review of Decision by the Bucks County Board of Elections filed on behalf of Petitioners Donald J. Trump for President, Inc., Republican National Committee, Heidelbaugh for Attorney General, Inc., and Garrity for PA; (2) the responses in opposition thereto filed by Respondent Bucks County Board of Elections, Intervener Democratic National Committee, and Interveners Pennsylvania House Democratic Campaign Committee and Bucks

> County Democratic Committee; and (3) the evidence presented including all stipulations and admissions by counsel as well as the arguments of counsel during the on the record prehearing conference and the hearing on November 17th, 2020, for the reasons set forth in the accompanying Memorandum, it is hereby ORDERED and DECREED that said Petition for Review is DENIED. The Bucks County Board of Elections is ORDERED consistent with the Memorandum to count the ballots which are the subject of the Petition:
>
> 1. 1,196 ballots with no date or a partial date handwritten on the outer envelope;
> 2. 644 ballots with no handwritten name or address on the outer envelope;
> 3. 86 ballots with a partial written address on the outer envelope;
> 4. 182 ballots with a mismatched address on the outer envelope; and
> 5. 69 ballots with "unsealed" privacy envelopes.
>
> BY THE COURT, /s/ Robert O. Baldi, J. / Robert O. Baldi, J. / /s/ 11/19/20

STATEMENT OF SCOPE AND STANDARD OF REVIEW

This appeal "requires this Court to engage in statutory interpretation of the Election Code, which, as a question of law, is subject to a de novo standard of review and a plenary scope of review." *Banfield v. Cortés*, 110 A.3d 155, 166 (Pa. 2015) (citing *Sch. Dist. of Philadelphia v. Dep't of Educ.*, 92 A.3d 746, 751 (Pa. 2014)).

STATEMENT OF THE QUESTIONS INVOLVED

Are absentee and mail-in ballots that fail to conform to the mandatory legislative requirements set forth in Election Code Sections 1306(a) and 3150.16(a) void and not subject to being counted?

STATEMENT OF THE CASE

I. Form of Action and Procedural History

This is an appeal from an order of the Court of Common Pleas of Bucks County denying Appellant's appeal in the nature of a petition for review under Election Code Section 1407(a), codified at 25 P.S. § 3157(a). In accordance with Pa. R.A.P. 2111(b), copies of the November 19, 2020 Memorandum and Order are appended hereto in Appendix A ("App. A").

On November 9, 2020, Appellant Donald J. Trump for President, Inc. (the "Campaign") appealed the Bucks County Board of Elections' decision to count 2,177 absentee and mail-in ballots that were cast in the November 3, 2020 General Election and failed to conform to the mandatory legislative requirements set forth in Election Code Sections 1306(a) and 3150.16(a), codified at 25 P.S. §§ 3146.6(a) and 3150.16(a). The Campaign's appeal was docketed in the Bucks County Court of Common Pleas before the Honorable Robert O. Baldi at Case Number 2005786-35. The Campaign brought similar challenges in other counties as well.

On November 19, 2020, the trial court issued its order denying the Campaign's appeal. The next day, the Campaign appealed to this Court.

II. Prior Determinations

The only prior determinations in this matter for which the Campaign is seeking this Court's review is the November 19, 2020 Orders affirming the Bucks County Board of Elections' decision to count 1,995 absentee and mail-in ballots that were cast in the November 3, 2020 General Election and failed to conform to the mandatory legislative requirements set forth in Election Code Sections 1306(a) and 3150.16(a). See App. A.

III. Name of the Judge Whose Determination Is to Be Reviewed

The Honorable Robert O. Baldi of the Bucks County Court of Common Pleas issued the November 19, 2020 Orders sought to be reviewed.

IV. Chronological Statement of Facts

A. The Parties

The Campaign is the principal committee for the reelection campaign of Donald J. Trump, the 45th President of the United States of America (hereinafter, "President Trump"). President Trump is the Republican candidate for the office of the President of the United States of America in the upcoming November 3, 2020 General Election. The Campaign brought this action for itself and on behalf of its

candidate, President Trump. President Trump is a "candidate" as that term is defined in Election Code Section 102(a), 25 P.S. § 2602(a). See *Rowland v. Smith*, 83 Pa. D. & C. 99, 101-2 (Pa. Ct. Com. Pl. Dauphin 1952) ("candidate" under the Election Code includes one who is a candidate for nomination for President of the United States). The Campaign is a "political body" as that term is defined in 25 P.S. § 1102. See *In re Canvass of Absentee Ballots of November 4, 2003*, 839 A.2d 451, 457 (Pa. Cmwlth. Ct. 2003) (en banc) (under Pennsylvania's Election Code, the status given to political bodies grants them standing regarding watchers and their ability "to raise objections to the allowance or disallowance of votes, including the right to be present when envelopes containing the official absentee ballots are opened, counted and recorded."), *rev'd on other grounds*, 843 A.2d 1223 (Pa. 2004); *In re General Election-1985*, 531 A.2d 836, 838 (Pa. Cmwlth. Ct. 1987) (panel decision) (a candidate for office in the election at issue suffers a direct and substantial harm sufficient for standing to contest the manner in which an election will be conducted).[1]

[1] In accordance with Pa. IOP Cmwlth. Ct. 414(c), because the cited decision in *In re Canvass of Absentee Ballots of November 4, 2003* was issued by this Court en banc, it is binding precedent. The *In re General Election-1985* decision is similarly binding as it was issued by a three-Judge panel of this Court. See Pa. IOP Cmwlth. Ct. 414(c) ("A reported opinion of the Court en banc or panel may be cited as binding precedent.").

Appellee, the Bucks County Board of Elections, has responsibility for elections in Bucks County and one of its principal places of business is located at 55 E. Court Street, Doylestown, PA 18901.

B. Pennsylvania Enacts No-Excuse Mail-In Voting

On October 31, 2019, the Pennsylvania General Assembly enacted Act 77. See Act 2019-77 (S.B. 421), § 8, approved October 31, 2019, eff. October 31, 2019.

Act 77 fundamentally changed the administration of elections in the Commonwealth of Pennsylvania in that, for the first time in its history, qualified Pennsylvania electors now have the choice to vote by mail, rather than in person on Election Day, without providing a reason or excuse. See, e.g., 25 P.S. §§ 3150.11-3150.17; see also *Pa. Dem. Party v. Boockvar*, 238 A.3d 345 (Pa. 2020).

Previously, the law offered electors who could not vote in person on the designated Election Day the ability to apply for and receive an absentee ballot, verifying they qualified based on a limited number of excuses outlined in the statute. Under Act 77, any registered voter could apply for a mail-in ballot and vote by submitting the same to the appropriate county board of elections even though the voter did not have an excuse to not vote in person on Election Day.

The absentee and mail-in voting statutory regime established under the Pennsylvania Election Code, as amended by Act 77, contains certain safeguards to ensure the integrity of the electoral process. Specifically, and of particular relevance to this matter, Sections 1306(a) and 3150.16(a) impose the following requirements to properly cast an absentee or mail-in ballot:

- At any time after receiving an official mail-in ballot, but on or before eight o'clock p.m. on the day of the election, the elector casting the absentee or mail-in ballot must mark the ballot "in secret";
- The marked ballot then must be placed and securely sealed in the secrecy envelope bearing the official stamp "Official Election Ballot," and then placed inside a second envelope (the "Outer Envelope"), on which must be printed "the form of declaration of the elector, and the address of the elector's county board of election and the local election district of the elector";
- Then, "the elector shall … fill out, date and sign the declaration printed on [the Outer Envelope]"; and
- "[The Outer Envelope] shall then be securely sealed and the elector shall send same by mail, postage prepaid, except where franked, or deliver it in person to said county board of election."

25 P.S. §§ 3146.6(a) & 3150.16(a).

Sections 3146.4 and 3150.14(b) delegate to the Secretary of the Commonwealth the responsibility to prescribe the form of the elector's declaration on the outer envelope used to mail the absentee and mail-in ballots:

> § 3146.4. Envelopes for official absentee ballots
> The county boards of election shall provide two additional envelopes for each official absentee ballot of such size and shape as shall be prescribed by the Secretary of the Commonwealth, in order to permit the placing of one within the other and both within the mailing envelope. On the smaller of the two envelopes to be enclosed in the mailing envelope shall be printed, stamped or endorsed the words "Official Election Ballot," and nothing else. On the larger of the two envelopes, to be enclosed within the mailing envelope, shall be printed the form of the declaration of the elector, and the name and address of the county board of election of the proper county. The larger envelope shall also contain information indicating the local election district of the absentee voter. Said form of declaration and envelope shall be as prescribed by the Secretary of the Commonwealth and shall contain among other things a statement of the electors qualifications, together with a statement that such elector has not already voted in such primary or election. The mailing envelope addressed to the elector shall contain the two envelopes, the official absentee ballot, lists of candidates, when authorized by section 1303 subsection (b) of this act, the uniform instructions in form and substance as prescribed by the Secretary of the Commonwealth and nothing else.
> 25 P.S. § 3146.4.
> § 3150.14. Envelopes for official mail-in ballots
> (b) Form of declaration and envelope.–The form of declaration and envelope shall be as prescribed by the Secretary of the Commonwealth and shall contain, among other things, a statement of the elector's

> qualifications, together with a statement that the elector has not already voted in the primary or election.
> 25 P.S. § 3150.14(b).

The pre-canvassing or canvassing of absentee and mail-in ballots proceed in accordance with the dictates of 25 P.S. § 3146.8(g)(3), as follows:

> § 3146.8. Canvassing of official absentee ballots and mail-in ballots
> (3) When the county board meets to pre-canvass or canvass absentee ballots and mail-in ballots under paragraphs (1), (1.1) and (2), the board shall examine the declaration on the envelope of each ballot not set aside under subsection (d) [a voter who dies before the election] and shall compare the information thereon with that contained in the "Registered Absentee and Mail-in Voters File," the absentee voters' list and/or the "Military Veterans and Emergency Civilians Absentee Voters File," whichever is applicable. If the county board has verified the proof of identification as required under this act and is satisfied that the declaration is sufficient and the information contained in the "Registered Absentee and Mail-in Voters File," the absentee voters' list and/or the "Military Veterans and Emergency Civilians Absentee Voters File" verifies his right to vote, the county board shall provide a list of the names of electors whose absentee ballots or mail-in ballots are to be pre-canvassed or canvassed.
> 25 P.S. § 3146.8(g)(3).

Pursuant to the authority granted in § 3150.14(b), the Secretary of the Commonwealth developed the following declaration used in connection with the 2020 General Election:

> I hereby declare that I am qualified to vote from the below stated address at this election; that I have not already voted in this election; and I further declare that I marked my ballot in secret. I am qualified to vote the enclosed ballot. I understand I am no longer eligible to vote at my polling place after I return my voted ballot. However, if my ballot is not received by the county, I understand I may only vote by provisional ballot at my polling place, unless I surrender my balloting materials, to be voided, to the judge of elections at my polling place.
> [BAR CODE]
> Voter, sign or mark here / Votante firme o margue aqui:
> X _____ Date signing (MM/DD/YYYY) / Fecha firme (MM/DD/YYYY)
> Voter, print name / Votante, nombre en letra de imprenta
> Voter, address (street) / Votante, direccion (calle)
> [LABEL: Voters' name and address]
> 25 P.S. § 3146.8(g)(3).

In addition, the Secretary issued guidance to the county boards of elections with respect to the examination of ballot return envelopes. First, on September 11, 2020, she issued the following guidance:

> 3. EXAMINATION OF DECLARATION ON BALLOT RETURN ENVELOPES:
> The county board of elections is responsible for approving ballots to be counted during pre-canvassing. To promote consistency across the 67 counties, the county boards of elections should follow the following steps when processing returned absentee and mail-in ballots.
> After setting aside ballots of elector's who died prior to the opening of the polls, the county board of elections shall examine the Voter's Declaration on the outer envelope of each returned ballot and compare the information on the outer envelope, i.e., the voter's name

> and address, with the information contained in the "Registered Absentee and Mail-in Voters File, the absentee voter's list and/or the Military Veterans' and Emergency Civilians Absentee Voters File."
> If the Voter's Declaration on the return envelope is blank, that ballot return envelope must be set aside and not counted. If the board determines that a ballot should not be counted, the final ballot disposition should be noted in SURE. The ballot return status (Resp Type) should be noted using the appropriate dropdown selection.
> If the Voter's Declaration on the return envelope is signed and the county board is satisfied that the declaration is sufficient, the mail-in or absentee ballot should be approved for canvassing unless challenged in accordance with the Pennsylvania Election Code.
> Guidance Concerning Examination of Absentee and Mail-in Ballot Return Envelopes, 9/11/2020, at 3.

Then, on September 28, 2020, the Secretary offered additional guidance on the treatment of ballot return envelopes:

> With regard to the outer ballot return envelope:
> A ballot return envelope with a declaration that is filled out, dated, and signed by an elector who was approved to receive an absentee or mail-in ballot is sufficient and counties should continue to pre-canvass and canvass these ballots.
> A ballot-return envelope with a declaration that is not filled out, dated, and signed is not sufficient and must be set aside, declared void and may not be counted. Ballot-return envelopes must be opened in such a manner as not to destroy the declarations executed thereon.
> All ballot-return envelopes containing executed declarations must be retained for a period of two years in accordance with the Election Code.

Pre-canvass and Canvass Procedures. At the pre-canvass or canvass, as the case may be, the county board of elections should:

Segregate the unopened ballots of voters whose applications were challenged by the challenge deadline (5:00 PM on the Friday before the election). These ballots must be placed in a secure, sealed container until the board of elections holds a formal hearing on the challenged ballots. Ballot applications can only be challenged on the basis that the applicant is not qualified to vote.

Set aside the ballot of any voter who was deceased before election day.

Set aside any ballots without a filled out, dated and signed declaration envelope.

Set aside any ballots without the secrecy envelope and any ballots in a secrecy envelope that include text, mark, or symbol which reveals the identity of the voter, the voter's political affiliation (party), or the voter's candidate preference.

The Election Code does not permit county election officials to reject applications or voted ballots based solely on signature analysis. No challenges may be made to mail in or absentee ballot applications after 5:00 pm on the Friday before the election. No challenges may be made to mail in and absentee ballots at any time based on signature analysis.

NOTE: For more information about the examination of return envelopes, please refer to the Department's September 11, 2020 Guidance Concerning Examination of Absentee and Mail in Ballot Return Envelopes. Guidance Concerning Civilian Absentee and Mail-in Ballot Procedures, 9/28/2020, at 5, 8-9.

V. Bucks County Board of Elections Votes to Count 2,177 Non-Conforming Absentee and Mail-In Ballots

On November 3, 2020, the General Election in Pennsylvania was held. As part of that election, 2,177 absentee and mail-in ballots were cast that failed to conform to the mandatory legislative requirements set forth in Election Code Sections 1306(a) and 3150.16(a). Specifically, the 2,177 ballots fell into the following categories:

- 1,196 ballots with no date or a partial date handwritten on the outer envelope;
- 644 ballots with no handwritten name or address on the outer envelope;
- 86 ballots with a partial written address on the outer envelope;
- 182 ballots with a mismatched address on the outer envelope; and
- 69 ballots with "unsealed" privacy envelopes. See App. A.

During the pre-canvass on Election Day, the Bucks County Board of Elections set aside the 2,177 absentee and mail-in ballots because they failed to conform to Election Code Sections 1306(a) and 3150.16(a). Then, seven (7) days after the Election, the Bucks County Board of Elections voted to count the non-conforming ballots. However, the Petitioners subsequently withdrew their challenge to the 181 ballots with a mismatched address on the outer envelope. See App. B. Accordingly, at issue are the 1995 remaining ballots.

In making its decision, the Board of Elections did not dispute that the ballots failed to conform with Election Code Sections 1306(a) and 3150.16(a). (11/19/2020 Order, p. 9-11.) Nevertheless, because there was no evidence of actual fraud, the Bucks County Board of Elections voted to count all 2,177 non-conforming absentee and mail-in ballots.

VI. The Trial Court Affirms the Bucks County Board of Elections' Decision

On November 17, 2020, the Honorable Robert O. Baldi held oral argument on the Campaign's appeal. Thereafter, the trial court entered an order dated November 19, 2020 affirming the Bucks County Board of Elections' decision to count the 2,177 absentee and mail-in ballots. As noted, a stipulation was later entered as to 182 ballots so that the actual number of ballots at issue is now 1,995. See App. B.

In its orders, the trial court denied the Campaign's appeal and affirmed the Bucks County Board of Elections' decision.

SUMMARY OF ARGUMENT

Pursuant to Judicial Code Section 762(a)(4)(i)(C), 42 Pa. C.S. § 762(a)(4)(i)(C), exclusive jurisdiction over appeals from orders of the courts of common pleas entered under Election Code Section 1407, 25 P.S. § 3157, rests exclusively in this Court. *Dayhoff*, 808 A.2d at 1006, n.7. This conclusion is

consistent with Article 5, Section 9 of the Pennsylvania Constitution, and case law which has held that this Court has jurisdiction over appeals involving election processes.

Moreover, because these appeals do not involve the qualification, eligibility, regularity of the electoral or appointive process, and other preconditions to the holding of a particular office, jurisdiction over these appeals does not lie with the Pennsylvania Supreme Court under Judicial Code Section 722(2), 42 Pa. C.S. § 722(2), involving appeals from common plea court orders involving the right to public office. Instead, jurisdiction rests solely in this Court as the appeals concern solely questions involving the election process.

Finally, the General Assembly set forth in the Election Code the requirements for how a qualified elector can cast a valid absentee and mail-in ballot, and one of those requirements is for each elector to "fill out, date, and sign" the declaration on the Outside Envelope. See 25 P.S. §§ 3146.6(a) & 3150.16(a). The Pennsylvania Supreme Court has repeatedly held that the requirements of Election Sections 1306(a) and 3150.16(a) are mandatory and that ballots cast in contravention of the requirements of such sections are void and cannot be counted. Accordingly, the trial court erred in affirming the Bucks County Board of Elections' decision to count the 1,995 non-conforming absentee and mail-in ballots.

ARGUMENT

I. Judicial Code Section 762(a)(4)(i)(C) Provides This Court With Exclusive Jurisdiction Over the Campaign's Appeal

The first issue for review concerns the scope of this Court's appellate jurisdiction. "Chapter Seven of the Judicial Code sets forth the 'legislatively ordained division of labor' between appellate courts in Pennsylvania." *Mohn v. Bucks Cty. Republican Comm.*, 218 A.3d 927, 930 (Pa. Super. Ct. 2019) (quoting *Valley Forge Indus., Inc. v. Armand Constr., Inc.*, 374 A.2d 1312, 1316 (Pa. Super. Ct. 1977)). Pursuant to Section 742 of the Judicial Code, appeals from final orders of the courts of common pleas shall vest exclusively in the Superior Court, "except such classes of appeals as are by any provision of this chapter within the exclusive jurisdiction of the Supreme Court or the Commonwealth Court." 42 Pa. C.S. § 742.

Section 762(a) of the Judicial Code enumerates seven specific categories of appeal from the courts of common pleas over which the Commonwealth Court has exclusive jurisdiction. Of importance to these appeals, Section 762(a) provides:

> (a) General rule.–Except as provided in subsection (b) [which is inapplicable herein], the Commonwealth Court shall have exclusive jurisdiction of appeals from final orders of the courts of common pleas in the following cases:
> (4) Local government civil and criminal matters.
> (i) All actions or proceedings arising under any municipality, institution district, public school, planning or zoning code or under which a municipality or other political subdivision or municipality authority may be

> formed or incorporated or where is drawn in question the application, interpretation or enforcement of any:
> (C) statute relating to elections, campaign financing or other election procedures.
> 42 Pa. C.S. § 762(a)(4)(i)(C) (emphasis added).

"Thus, pursuant to our statutory scheme, appeals from final orders of the courts of common pleas involving the application, interpretation or enforcement of any statute relating to elections or election procedures fall within the exclusive jurisdiction of the Commonwealth Court." *Mohn*, 218 A.3d at 931.

As the Pennsylvania Supreme Court held in *In re Petition to Contest Gen. Election for Dist. Justice*, 670 A.2d 629 (Pa. 1996), this Court has jurisdiction over appeals involving elections when it was created in 1970. *Id.*, 670 A.2d at 631 n.1 ("Although [the Pennsylvania Supreme] Court had previously entertained appeals from the courts of common pleas in election matters … jurisdiction over such appeals was given to the Commonwealth Court when that court was created in 1970."). Accordingly, despite Section 1407(b)'s no appeal language, this Court has exclusive jurisdiction over appeals in Election Code cases. *In re Nomination re Warren*, 692 A.2d 1178, 1181 (Pa. Cmwlth. Ct. 1997).

II. Absentee and Mail-In Ballots That Fail to Conform to the Mandatory Legislative Requirements Set Forth in Election Code Sections 1306(a) and 3150.16(a) Are Void and Not Subject to Being Counted

When the Pennsylvania General Assembly enacted Act 77 nearly a year ago, it provided voters access to no excuse mail-in voting. In doing so, our legislature described the process for absentee and mail-in voters to follow in completing their ballots. Specifically, Election Code Sections 1306(a) and 3150.16(a) state that "the [absentee/mail-in] elector shall, in secret, proceed to mark the ballot …" 25 P.S. §§ 3146.6(a) & 3150.16(a). Sections 1306(a) and 3150.16(a) then describe the process whereby an absentee/mail-in voter "shall" place his/her ballot inside a secrecy envelope marked "Official Mail-in Ballot", and then place that ballot-filled envelope inside another outer envelope which has a printed declaration for the elector to sign. *Id.* The sections then specify: "the elector shall … fill out, date and sign the declaration printed on [the Outer Envelope]." *Id.* (emphasis added). Finally, the Sections 1306(a) and 3150.16(a) provide that "[s]uch envelope shall then be securely sealed and the elector shall send same by mail, postage prepaid, except where franked, or deliver it in person to said county board of election." *Id.* See also *Pa. Democratic Party v. Boockvar*, 238 A.3d at ___, 2020 Pa. LEXIS 4872, at *59.

Consistent with the dictates of the Statutory Construction Act, the Pennsylvania Supreme Court has declared the use of the term "shall" in Election

Code Sections 1306(a) and 3150.16(a) is mandatory not directory. *In re Canvass of Absentee Ballots of Nov. 4, 2003 Gen. Election*, 843 A.2d 1223, 1231-1232, & 1234 (Pa. 2004); *Pa. Democratic Party v. Boockvar*, 2020 Pa. LEXIS 4872, at *70-*74. Moreover, the Supreme Court has recognized that the "so-called technicalities of [Election Code Sections 1306(a) and 3150.16(a)] are necessary for the preservation of secrecy and the sanctity of the ballot and must therefore be observed – particularly where, as here, they are designed to reduce fraud." *In re Canvass of Absentee Ballots of Nov. 4, 2003 Gen. Election*, 843 A.2d at 1234. Accordingly, absentee or mail-in ballots cast in contravention of the requirements of Election Code 1306(a) and 3150.16(a) are "void" and cannot be counted. *Id.*

Here, there is no dispute that the 1,995 ballots were not filled out as mandated by Election Code Sections 1306(a) and 3150.16(a). The Board of Elections did not proffer any testimony of any voter which revealed that the qualified elector made a mistake by not including their printed name, street address, and date on the declaration envelopes. Instead, the Board of Elections simply inferred that a mistake had been made, despite the fact that it is equally plausible that someone other than the identified electors may have completed the ballots which is why the printed names, addresses, and dates are missing in contravention of the mandates of Election Code Sections 1306(a) and 3150.16(a). Because the General Assembly has clearly stated what an elector must do to cast

an absentee and mail-in ballot and there is no affirmative evidence in the record which proves that the elector at issue were misled by the Bucks County Board of Elections when completing their absentee and mail-in ballots, all non-conforming ballots received by the Bucks County Board of Elections are void and cannot be counted.

Further, our Supreme Court previously rejected the notion that absentee or mail-in ballots can be counted despite their failure to comply with the mandates of Election Code Sections 1306(a) and 3150.16(a). Specifically, in *Pa. Democratic Party v. Boockvar*, our Supreme Court recognized that "[w]hile the Pennsylvania Constitution mandates that elections be 'free and equal,' it leaves the task of effectuating that mandate to the Legislature." *Pa. Democratic Party v. Boockvar*, 2020 Pa. LEXIS 4872, at *56 (citing *Winston v. Moore*, 91 A. 520, 522 (Pa. 1914)).

Moreover, "although the Election Code provides the procedures for casting and counting a vote by mail, it does not provide for [a] 'notice and opportunity to cure' … [and] [t]o the extent that a voter is at risk for having his or her ballot rejected due to minor errors made in contravention of those requirements, … the decision to provide a 'notice and opportunity to cure' procedure to alleviate that risk is one best suited for the Legislature[,] … particularly in light of the open policy questions attendant to that decision, including what the precise contours of

the procedure would be, how the concomitant burdens would be addressed, and how the procedure would impact the confidentiality and counting of ballots, all of which are best left to the legislative branch of Pennsylvania's government." *Pa. Democratic Party v. Boockvar*, 2020 Pa. LEXIS 4872, at *56. Accordingly, there is nothing in the Election Code that authorizes a county board of elections to accept and count non-conforming absentee and mail-in ballots. In fact, to do so creates a "notice and opportunity to cure" procedure which the Pennsylvania Supreme Court has expressly held does not exist in the Election Code.

Furthermore, concluding that the term "shall" in Election Code Sections 1306(a) and 3150.16(a) is merely directory rather than mandatory raises serious equal protection concerns. See, e.g., *Pierce v. Allegheny County Bd. of Elections*, 324 F. Supp. 2d 684, 699 (W.D. Pa. 2003). As the Western District of Pennsylvania noted years ago when addressing the "in person" delivery requirement in Election Code Section 3146.6(a): "If the state courts hold that the phrase 'in person' is merely directory, then different standards have been employed in different counties across the Commonwealth of Pennsylvania to determine whether an absentee ballot should be counted. That kind of disparate treatment implicates the equal protection clause because uniform standards will not be used statewide to discern the legality of a vote in a statewide election." *Id.* The same conclusion applies to Election Code Sections 1306(a) and 3150.16(a)'s "fill

out" requirement. Voters in Bucks County whose non-conforming ballots the Bucks County Board of Elections has decided to count are being afforded greater voting strength than similarly-situated voters in counties which have decided to follow Election Code Sections 1306(a) and 3150.16(a)'s mandatory "fill out" requirement and not count such non-conforming ballots.

As the Pennsylvania Supreme Court has consistently declared, "the polestar of statutory construction is to determine the intent of the General Assembly." *In re Canvass of Absentee Ballots of Nov. 4, 2003 Gen. Election*, 843 A.2d at 1230 (citing 1 Pa.C.S. § 1921(a) (court's sole objective in construing or interpreting a statute remains to "ascertain and effectuate the intention of the General Assembly"); *Hannaberry HVAC v. Workers' Compensation Appeal Bd. (Snyder)*, 834 A.2d 524, 531 (Pa. 2003)). "Generally speaking, the best indication of legislative intent is the plain language of a statute." *Gilmour Manufacturing*, 822 A.2d at 679. Furthermore, in construing statutory language, "words and phrases shall be construed according to rules of grammar and according to their common and approved usage. …" *Id.* (quoting 1 Pa.C.S. § 1903). Thus, "when the words of a statute are clear and free from all ambiguity, the letter of it is not to be disregarded under the pretext of pursuing its spirit."[2]

[2] 1 Pa.C.S. § 1921(b).

Accordingly, "all things being equal, the law will be construed liberally in favor of the right to vote but, at the same time, [the courts] cannot ignore the clear mandates of the Election Code." *In re Canvass of Absentee Ballots of Nov. 4, 2003 Gen. Election*, 843 A.2d at 1231 (citing *In re Nomination Petition of Gallagher*, 359 A.2d 791, 792 (Pa. 1976) ("we cannot permit a resort to sophistry in an effort to avoid the clear mandates of the Election Code.")).

Here, the common and approved usage of the term "fill out" in the context of Election Code Sections 1306(a) and 3150.16(a) is "to add information such as your name or address in the empty spaces on an official document." MacMillan Dictionary, definition "fill out," available online at https://www.macmillandictionary.com/us/dictionary/american/fill-out. See also Cambridge Dictionary, definition "fill out," available online at https://dictionary.cambridge.org/us/dictionary/english/fill-out ("fill out" means "to write or type information in spaces that are provided for it"). Thus, the term "fill out" in Election Code Sections 1306(a) and 3150.16(a) is not ambiguous, and the trial court erred by not using its common and approved usage which requires an elector to add, write, or type in one's printed name, address, and date in order to properly cast an absentee or mail-in ballot.

While the within appeal was pending, the Pennsylvania Supreme Court issued an Opinion dated November 23, 2020, holding, "[W]e conclude that the

Election Code does not require board of elections to disqualify mail-in or absentee ballots submitted by qualified electors who signed the declaration on their ballot's outer envelope but did not handwrite their name, their address, and/or date where no fraud or irregularity has been alleged." In Re: Canvass of Absentee and Mail-In Ballots, et al, J-118A-2020, J-118B-2020, J-118C-2020, J-118D-2020, J-119E-2020 and J-118F-2020, November 23, 2020. However, Justice Wecht filed a Concurring and Dissenting Opinion, noting: "[I]n future elections, I would treat the date and sign requirement as mandatory in both particulars, with the omission of either item sufficient without more to invalidate the ballot in question. … However, under the circumstances in which the issue has arisen, I would apply my interpretation only prospectively." Id. Additionally, in his Concurring and Dissenting Opinion, Justice Dougherty opined: "[I] cannot agree that the obligation of electors to set forth the date they signed the declaration on that envelope does not carry 'weight interests.'" Id. Accordingly, the Supreme Court concluded, on a 4-3 basis, that the date was a mandatory requirement and the ballot cast in that matter should be void. However, Justice Wecht noted that the decision should only be applied on a prospective basis.

The Supreme Court did not address the Equal Protection Argument as outlined by Judge Brobson in the Allegheny appeal (29 WAP 2020) as well as in the appeals of In re: Canvass of Absentee and Mail in Ballots of November 3, 2020

General Election (31 through 35 EAP 2020). Therefore, we incorporate those Equal Protection arguments in the within appeal.

CONCLUSION

This Court has exclusive jurisdiction over the Campaign's appeal as they involve issues related to the election process and not the right to public office. Moreover, the trial court erred by affirming the Bucks County Board of Elections' decision to count the 1,995 absentee and mail-in ballots that admittedly failed to conform to the legislative mandates of Election Code Sections 1306(a) and 3150.16(a). To hold otherwise violates the plain and ordinary meaning of the sections mandatory language and creates serious equal protection concerns for voters throughout the Commonwealth who properly cast absentee and mail-in ballots in the November 3, 2020 General Election.

Accordingly, the Campaign respectfully requests that this Court consider the within arguments including the serious equal protection concerns and reverse the trial court order and remand these appeals with instructions that the Campaign's appeal to the Bucks County Board of Elections' decisions be sustained and that the 1,995 non-conforming absentee and mail-in ballots not be counted as void.

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CERTIFICATE OF COMPLIANCE

I certify that this filing complies with the provisions of the Case Records Public Access Policy of the Unified Judicial System of Pennsylvania that require filing confidential information and documents differently than non-confidential information and documents.

I certify that this brief complies with the word count limit of Pa.R.A.P. 2135(a)(1). The certificate relies on the word count of the word processing system used to prepare the brief, as Pa.R.A.P. 2135(d) permits.

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PROOF OF SERVICE

I hereby certify that on the 23rd day of November, 2020, two true and correct copies of the foregoing Brief were served upon counsel of record by email which satisfies the requirements of Pa.R.A.P. 121:

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